

□ Your Safety Comes First

Some of what you shared suggests you may be dealing with a situation that could put your safety at risk. You are not alone, and help is available right now — you do not need a lawyer or any money to reach it.

If you are in immediate danger, call 911.

You can reach trained, confidential help any time:

- **HUD Housing Counseling** — call 1-800-569-4287
- **Text the Crisis Text Line:** text HOME to **741741** (open 24/7, for any kind of crisis)

You get to decide what feels safe for you. The steps above are here whenever you are ready.

□ Deadlines & Time-Sensitive Items

Read this first. Missing a legal deadline can end a case. The dates below are estimates generated automatically — **always confirm the exact date with the court or a lawyer.**

□ the case is set for April 1st at 9am at halden county court, housing division — DEADLINE MAY HAVE PASSED

- **Estimated deadline:** 2026-04-01
- **Basis:** Minn. Stat. § 504B.321 (Minnesota eviction summons/hearing procedure); the hearing date printed on your summons or hearing notice.
- **Triggering event:** hearing on 2026-04-01
- **Jurisdiction:** MN
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. This is the eviction hearing date printed on your court papers — you must appear; in Minnesota your defenses are raised at this hearing (there is no separate written answer deadline). Estimated — confirm the exact date with the court or a lawyer. If this hearing date has already passed, contact the housing court immediately. If a judgment was entered against you, ask about a motion to vacate the judgment and about expungement of the eviction record (Minn. Stat. § 484.014) — missing the hearing does not always end your options.

□ Pursuant to Minnesota law, you have FOURTEEN (14) DAYS from the date of this notice to pay the total amount due in full, OR to vacate and surrender the premises. — DEADLINE MAY HAVE PASSED

- **Estimated deadline:** 2026-03-17
- **Basis:** Minn. Stat. § 504B.321, subd. 1a (14-day written notice required before an eviction action for nonpayment of rent); for other Minnesota notice-to-quit periods see Minn. Stat. § 504B.135. The period printed on your notice controls if longer.

- **Triggering event:** notice posted on 2026-03-03
- **Jurisdiction:** MN
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. Minnesota requires a written notice period before a nonpayment eviction can be filed; the cure/vacate date is computed from the day the notice was given. Estimated — confirm the exact date with the court or a lawyer. If this notice period has already passed, an eviction case may have been filed — but that is not the end: in Minnesota you can still raise your defenses at the eviction hearing (including paying what is owed to redeem in a nonpayment case, Minn. Stat. § 504B.291). If a judgment was already entered, ask about vacating it and about expungement (Minn. Stat. § 484.014).

❑ moved in July 2025 — DEADLINE MAY HAVE PASSED

- **Estimated deadline:** 2026-07-01
- **Basis:** INA § 208(a)(2)(B); 8 U.S.C. § 1158(a)(2)(B) (one-year filing deadline)
- **Triggering event:** entry on 2025-07-01
- **Jurisdiction:** US
- **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. Asylum applications generally must be filed within one year of arrival in the United States. Estimated — confirm the exact date with the court or a lawyer. Because this one-year asylum deadline appears to have already passed, you may still be able to apply if an EXCEPTION applies: 'changed circumstances' that materially affect eligibility, or 'extraordinary circumstances' that excuse the late filing (for example serious illness, or ineffective assistance / fraud by a notario or non-lawyer). This exception pathway is governed by INA § 208(a)(2)(D); 8 U.S.C. § 1158(a)(2)(D). Ask an immigration lawyer whether one of these

exceptions applies to you — the late deadline may not be the end of your asylum claim.

△ **marcus has been coughing a lot since the mold problem.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2025-12-01
- Estimated — confirm the exact date with the court or a lawyer.

△ **the HEAT went out from January 18 to 23.**

- **Estimated deadline:** date unclear — this time-sensitive item needs an exact date.
- **Triggering event:** incident on 2026-01-18
- Estimated — confirm the exact date with the court or a lawyer.

Executive Summary

This intake revealed 13 possible legal issues related to a case. The three most strongly supported issues are Breach of Implied Warranty of Habitability (failure to provide a livable home), Repair-and-Deduct (a tenant's right to make repairs and deduct the cost from rent), and Eviction Despite Repairs and Habitability Concerns (eviction issues even though repairs were made and there are livability problems).

IMPORTANT: It looks like at least one deadline has already passed — the case is scheduled for April 1st at 9 am at Halden County Court, housing division (computed 2026-04-01) [Minn. Stat. § 504B.321 (Minnesota

eviction summons/hearing procedure); the hearing date printed on your summons or hearing notice.]. You need to confirm this right away, because missing deadlines can affect the case's outcome. There were also safety concerns mentioned in this narrative; please see the safety resources provided below. The analysis is complete, and answering the 8 follow-up questions below would help improve the assessment.

Completeness Score: 100%

Untitled Intake

Generated: 2026-07-11 03:26 UTC

Matter ID: 178

Run ID: 38

Completeness: 100%

General

| Eviction Despite Repairs and Habitability Concerns

Claim Type: discovered | **Confidence:** 90%

FOLIO IRI: <https://folio.openlegalstandard.org/R9wMn80MhrS9iqfKdQdH1A3>

ISSUE

If the landlord hasn't fixed the heating and mold problems, the tenant could claim that the eviction is unfair or retaliatory (punishing the tenant for complaining) because it doesn't meet the standards for habitability (the condition that rental properties must be livable).

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): What is the timeline of the eviction process and have you responded to any eviction notices according to the procedural requirements in your jurisdiction?

CONCLUSION

No elements defined

| Potential Landlord Negligence

Claim Type: discovered | **Confidence:** 80%

FOLIO IRI: <https://folio.openlegalstandard.org/RC8bnzMEhgjx01vV9ngLiR3>

ISSUE

Negligence claims can happen when a landlord does not address known problems that affect the safety and well-being of tenants. This is illustrated by the landlord's slow response to the tenant's complaints about heating issues and mold.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Potential Landlord Negligence' has not been explored with fact mappings

CONCLUSION

No elements defined

| Health and Safety Violations

Claim Type: discovered | **Confidence:** 75%

FOLIO IRI: <https://folio.openlegalstandard.org/RDsDXHKUsZoJfz87jnz7zjj>

ISSUE

Documentation of mold and health issues can show violations of local health codes (rules set by local governments to protect public health), which may strengthen the tenant's defense.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

CONCLUSION

No elements defined

| Failure to Provide Essential Services

Claim Type: discovered | **Confidence:** 40%

ISSUE

Not having heat during severe weather is often seen as a breach of the warranty of habitability (a legal promise that rental properties are livable), which can boost the tenant's legal standing.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Procedural Requirement** (Priority 50): Are there local housing ordinances or regulations that apply regarding the provision of essential services, such as heating, that the landlord may have violated?

CONCLUSION

No elements defined

| Marcus's Health Impact and Landlord's Duty to Mitigate

Claim Type: discovered | **Confidence:** 40%

ISSUE

The landlord might have a duty under local health rules or laws to keep the property safe from dangers that could harm tenant health. This is especially important since Marcus has asthma, which can get worse if he is exposed to mold.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

CONCLUSION

No elements defined

| Retaliation for Reporting Issues

Claim Type: discovered | **Confidence:** 40%

ISSUE

Landlords are not allowed to take revenge against tenants for filing complaints about living conditions being unsafe or unhealthy. The timing of their actions might help prove this claim.

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliation for Reporting Issues' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): Have you maintained records of your reports to housing authorities or complaints to the landlord that could demonstrate the timing of any retaliatory actions?

CONCLUSION

No elements defined

Tenant Rights and Protections

Claim Type: discovered | **Confidence:** 40%

ISSUE

The presence of mold and a heat outage can activate legal protections for tenants (people who rent homes). If these rights are violated, it may lead to a new legal claim (a formal complaint).

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Tenant Rights and Protections' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): Have you documented your complaints to the landlord regarding the mold and heat issues to support your tenant protection claims?

CONCLUSION

No elements defined

More possible issues (show more)

- **Wrongful Non-Payment and Lease Terms:** 40% confidence
- **Unlawful Entry:** 30% confidence

state

Breach of Implied Warranty of Habitability

Claim Type: discovered | **Confidence:** 95%

FOLIO IRI: <https://folio.openlegalstandard.org/RBRosNDPt8cNUuRnoPqYufN>

ISSUE

The ongoing mold problem and lack of heat create situations that might break the implied warranty of habitability (an unspoken guarantee that a rental property is safe and livable), which affects the tenant's right to a safe and livable environment.

RULE

No authorities identified for this claim.

APPLICATION

- **Landlord's Responsibility:** Supported (79% confidence) - The landlord must take reasonable steps to repair and maintain the premises.
 - Fact: The landlord's name is Wendell. (79% match)
- **Condition of Premises:** Supported (85% confidence) - The rental unit must be safe, clean, and fit for human habitation.
 - Fact: Danika Osgood reported that the mold got worse on December 2, 2025. (85% match)
 - Fact: There has been mold in the bathroom ceiling since October. (85% match)
 - Fact: Marcus has been coughing a lot since the mold problem. (85% match)

- **Notice to Landlord:** Supported (85% confidence) - The tenant must notify the landlord of any conditions affecting habitability.
 - Fact: The individual moved in July 2025. (85% match)
 - Fact: Danika Osgood reported that the mold got worse on December 2, 2025. (85% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 95): Element 'Notice to Landlord' is not yet supported by any facts
 - Element: Notice to Landlord
- **Unsupported Element** (Priority 95): Element 'Landlord's Responsibility' is not yet supported by any facts
 - Element: Landlord's Responsibility
- **Procedural Requirement** (Priority 50): What is the statute of limitations for filing a breach of implied warranty of habitability claim in your jurisdiction?

CONCLUSION

Three out of three elements are supported with 83% confidence.

Breach of Implied Warranty of Habitability by Home Seller

Claim Type: discovered | **Confidence:** 70%

Related to: Breach of Implied Warranty of Habitability

FOLIO IRI: <https://folio.openlegalstandard.org/R78sQua6LVfK3i7KL9lqmZN>

ISSUE

Found through exploring FOLIO's website structure related to Breach of Implied Warranty of Habitability (level 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Breach of Implied Warranty of Habitability by Home Seller' has not been explored with fact mappings

CONCLUSION

No elements defined

| Property & Premises Liability Claims

Claim Type: discovered | **Confidence:** 70%

Related to: Breach of Implied Warranty of Habitability

FOLIO IRI: <https://folio.openlegalstandard.org/RDSBerlLWg1ntpLqDQn1eVn>

ISSUE

Found through exploring FOLIO's website structure related to Breach of Implied Warranty of Habitability (level 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Property & Premises Liability Claims' has not been explored with fact mappings

CONCLUSION

No elements defined

| Breach of Warranty

Claim Type: discovered | **Confidence:** 30%

Related to: Breach of Implied Warranty of Habitability

ISSUE

Found through exploring FOLIO's website structure related to Breach of Implied Warranty of Habitability (level 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Breach of Warranty' has not been explored with fact mappings

CONCLUSION

No elements defined

Contract & Quasi-Contract Claims

Claim Type: discovered | **Confidence:** 30%

Related to: Breach of Implied Warranty of Habitability

ISSUE

Found through exploring FOLIO's website structure related to Breach of Implied Warranty of Habitability (level 1)

RULE

No authorities identified for this claim.

APPLICATION

No elements defined for this claim.

GAPS & OPEN QUESTIONS

- **Unexplored Claim** (Priority 50): Potential claim 'Contract & Quasi-Contract Claims' has not been explored with fact mappings

CONCLUSION

No elements defined

Repair-and-Deduct

Claim Type: discovered | **Confidence:** 90%

ISSUE

The facts indicate that the tenant did not pay rent because the landlord failed to fix the mold problem and heating issues. This could support a repair-and-deduct claim (a legal concept allowing tenants to deduct the cost of repairs from their rent).

RULE

No authorities identified for this claim.

APPLICATION

- **Reasonable Repair Costs:** Unsupported - The tenant must incur repair costs that are necessary and reasonable.
- **Landlord's Failure to Repair:** Supported (81% confidence) - The landlord must have failed to address the repair issues within a reasonable time after notification.
 - Fact: Wendell instructed the individual to call the emergency line. (81% match)
 - Fact: The emergency line never answered the calls. (81% match)
 - Fact: A city official visited on February 25. (81% match)
- **Tenant's Attempt to Notify Landlord:** Supported (85% confidence) - The tenant must have notified the landlord of the needed repairs.
 - Fact: The individual called the city on February 20 to report the mold and no-heat issue. (81% match)
 - Fact: The individual has texts from November 12 and December 2 documenting the issue. (83% match)
 - Fact: The individual wants the mold fixed before paying. (85% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 90): Element 'Reasonable Repair Costs' is not yet supported by any facts
 - Element: Reasonable Repair Costs
- **Procedural Requirement** (Priority 50): Did you follow any required procedures for the repair-and-deduct remedy, such as notifying the landlord in writing of the needed repairs?

CONCLUSION

Two out of three parts are supported with a confidence level of 55%.

Retaliation for Withholding Rent

Claim Type: discovered | **Confidence:** 40%

ISSUE

The tenant might be at risk of being evicted because they withheld rent, claiming the landlord didn't fix serious living problems, which could be seen as retaliation (punishing a tenant for exercising their rights).

RULE

No authorities identified for this claim.

APPLICATION

- **Adverse Action by Landlord:** Unsupported - The landlord takes adverse action against the tenant, such as eviction or harassment.
- **Causal Connection:** Unsupported - There must be a causal connection between the protected activity and the landlord's adverse action.
- **Protected Activity:** Supported (81% confidence) - The tenant engages in a protected activity, such as reporting health hazards.
 - Fact: The individual did not pay the \$350. (81% match)

GAPS & OPEN QUESTIONS

- **Unsupported Element** (Priority 40): Element 'Protected Activity' is not yet supported by any facts
 - Element: Protected Activity
- **Unsupported Element** (Priority 40): Element 'Adverse Action by Landlord' is not yet supported by any facts
 - Element: Adverse Action by Landlord

- **Unsupported Element** (Priority 40): Element 'Causal Connection' is not yet supported by any facts
 - Element: Causal Connection
- **Unexplored Claim** (Priority 50): Potential claim 'Retaliation for Withholding Rent' has not been explored with fact mappings
- **Procedural Requirement** (Priority 50): What is the timeline of events regarding your rent withholding and any actions taken by your landlord to determine if the retaliation claim is timely?

CONCLUSION

One out of three parts has support (27% confidence).

More possible issues (show more)

- **Product Liability Claims:** 30% confidence (related to Breach of Implied Warranty of Habitability)

Triage & Routing Recommendations

Primary Practice Area: Landlord-Tenant / Housing

Primary Jurisdiction: General

Complexity: High

Urgency: Emergency

Ranked Recommendations

1. Landlord-Tenant / Housing (Score: 0.56)

Landlord-Tenant / Housing practice area (70% of claims); mixed jurisdictions (70% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	70%
Jurisdiction Match	70%
Complexity Score	20%

2. General Civil (Score: 0.39)

General Civil practice area (20% of claims); mixed jurisdictions (70% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	20%
Jurisdiction Match	70%
Complexity Score	20%

3. Employment (Score: 0.35)

Employment practice area (10% of claims); mixed jurisdictions (70% concentration); high complexity; emergency urgency

Factor	Score
Practice Area Match	10%
Jurisdiction Match	70%
Complexity Score	20%

Action Items

Documents to Gather

- [] **[URGENT]** Element 'Notice to Landlord' is not yet supported by any facts
 - **Claim:** Breach of Implied Warranty of Habitability

- **Element:** Notice to Landlord
- [] **[URGENT]** Element 'Landlord's Responsibility' is not yet supported by any facts
 - **Claim:** Breach of Implied Warranty of Habitability
 - **Element:** Landlord's Responsibility
- [] **[URGENT]** Element 'Reasonable Repair Costs' is not yet supported by any facts
 - **Claim:** Repair-and-Deduct
 - **Element:** Reasonable Repair Costs
- [] **[URGENT]** Element 'Protected Activity' is not yet supported by any facts
 - **Claim:** Retaliation for Withholding Rent
 - **Element:** Protected Activity
- [] **[URGENT]** Element 'Adverse Action by Landlord' is not yet supported by any facts
 - **Claim:** Retaliation for Withholding Rent
 - **Element:** Adverse Action by Landlord
- [] **[URGENT]** Element 'Causal Connection' is not yet supported by any facts
 - **Claim:** Retaliation for Withholding Rent
 - **Element:** Causal Connection

Follow-up Steps

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: the case is set for April 1st at 9am at halden county court, housing division (estimated 2026-04-01; Minn. Stat. § 504B.321 (Minnesota eviction summons/hearing procedure); the hearing date printed on your summons or hearing notice.). **WARNING:** this deadline appears to have ALREADY PASSED as of 2026-07-11. This is the eviction hearing date printed on your court papers — you must

appear; in Minnesota your defenses are raised at this hearing (there is no separate written answer deadline). Estimated — confirm the exact date with the court or a lawyer. If this hearing date has already passed, contact the housing court immediately. If a judgment was entered against you, ask about a motion to vacate the judgment and about expungement of the eviction record (Minn. Stat. § 484.014) — missing the hearing does not always end your options.

- **Deadline:** 2026-04-01

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: Pursuant to Minnesota law, you have FOURTEEN (14) DAYS from the date of this notice to pay the total amount due in full, OR to vacate and surrender the premises. (estimated 2026-03-17; Minn. Stat. § 504B.321, subd. 1a (14-day written notice required before an eviction action for nonpayment of rent); for other Minnesota notice-to-quit periods see Minn. Stat. § 504B.135. The period printed on your notice controls if longer.). WARNING: this deadline appears to have ALREADY PASSED as of 2026-07-11. Minnesota requires a written notice period before a nonpayment eviction can be filed; the cure/vacate date is computed from the day the notice was given. Estimated — confirm the exact date with the court or a lawyer. If this notice period has already passed, an eviction case may have been filed — but that is not the end: in Minnesota you can still raise your defenses at the eviction hearing (including paying what is owed to redeem in a nonpayment case, Minn. Stat. § 504B.291). If a judgment was already entered, ask about vacating it and about expungement (Minn. Stat. § 484.014).

- **Deadline:** 2026-03-17

- [] **[URGENT]** PAST-DUE? Confirm the deadline for: moved in July 2025 (estimated 2026-07-01; INA § 208(a)(2)(B); 8 U.S.C. § 1158(a)(2)(B) (one-year filing deadline)). WARNING: this deadline appears to have ALREADY PASSED as of 2026-07-11. Asylum applications generally must be filed within one year of arrival in

the United States. Estimated — confirm the exact date with the court or a lawyer. Because this one-year asylum deadline appears to have already passed, you may still be able to apply if an EXCEPTION applies: 'changed circumstances' that materially affect eligibility, or 'extraordinary circumstances' that excuse the late filing (for example serious illness, or ineffective assistance / fraud by a notario or non-lawyer). This exception pathway is governed by INA § 208(a)(2)(D); 8 U.S.C. § 1158(a)(2)(D). Ask an immigration lawyer whether one of these exceptions applies to you — the late deadline may not be the end of your asylum claim.

- **Deadline:** 2026-07-01

- [] **[URGENT]** About the immigration papers (Notice to Appear) you received: did that first notice state the exact TIME, DATE, and PLACE of your court hearing, or were those details missing or sent later? A notice missing those details can matter to your case (it can affect eligibility clocks) — bring the original papers to a lawyer. [Authority: *Pereira v. Sessions*, 138 S. Ct. 2105 (2018); *Niz-Chavez v. Garland*, 141 S. Ct. 1474 (2021) (defective Notice to Appear)]
- [] **[URGENT]** You reported problems to the city (or an inspector cited your landlord) shortly before the eviction steps started. If a landlord moves to evict soon after a tenant reports code violations, the law may presume retaliation — in Minnesota, Minn. Stat. § 504B.285/§ 504B.441; other states have an equivalent. How soon after your report did the eviction notice arrive? [Authority: Minn. Stat. § 504B.285, subd. 2; § 504B.441 (retaliation defense/penalties)]
- [] **[URGENT]** Potential claim 'Retaliation for Withholding Rent' has not been explored with fact mappings
 - **Claim:** Retaliation for Withholding Rent

- [] **[URGENT]** Potential claim 'Breach of Implied Warranty of Habitability by Home Seller' has not been explored with fact mappings
 - **Claim:** Breach of Implied Warranty of Habitability by Home Seller
- [] **[URGENT]** Potential claim 'Breach of Warranty' has not been explored with fact mappings
 - **Claim:** Breach of Warranty
- [] **[URGENT]** Potential claim 'Product Liability Claims' has not been explored with fact mappings
 - **Claim:** Product Liability Claims
- [] **[URGENT]** Potential claim 'Contract & Quasi-Contract Claims' has not been explored with fact mappings
 - **Claim:** Contract & Quasi-Contract Claims
- [] **[URGENT]** Potential claim 'Property & Premises Liability Claims' has not been explored with fact mappings
 - **Claim:** Property & Premises Liability Claims
- [] **[URGENT]** Potential claim 'Tenant Rights and Protections' has not been explored with fact mappings
 - **Claim:** Tenant Rights and Protections
- [] **[URGENT]** Potential claim 'Retaliation for Reporting Issues' has not been explored with fact mappings
 - **Claim:** Retaliation for Reporting Issues
- [] **[URGENT]** Potential claim 'Unlawful Entry' has not been explored with fact mappings
 - **Claim:** Unlawful Entry
- [] **[URGENT]** Potential claim 'Potential Landlord Negligence' has not been explored with fact mappings
 - **Claim:** Potential Landlord Negligence

- [] **[URGENT]** What is the statute of limitations for filing a breach of implied warranty of habitability claim in your jurisdiction?
 - **Claim:** Breach of Implied Warranty of Habitability
- [] **[URGENT]** Did you follow any required procedures for the repair-and-deduct remedy, such as notifying the landlord in writing of the needed repairs?
 - **Claim:** Repair-and-Deduct
- [] **[URGENT]** What is the timeline of events regarding your rent withholding and any actions taken by your landlord to determine if the retaliation claim is timely?
 - **Claim:** Retaliation for Withholding Rent
- [] **[URGENT]** Have you documented your complaints to the landlord regarding the mold and heat issues to support your tenant protection claims?
 - **Claim:** Tenant Rights and Protections
- [] **[URGENT]** What is the timeline of the eviction process and have you responded to any eviction notices according to the procedural requirements in your jurisdiction?
 - **Claim:** Eviction Despite Repairs and Habitability Concerns
- [] **[URGENT]** Have you maintained records of your reports to housing authorities or complaints to the landlord that could demonstrate the timing of any retaliatory actions?
 - **Claim:** Retaliation for Reporting Issues
- [] **[URGENT]** Are there local housing ordinances or regulations that apply regarding the provision of essential services, such as heating, that the landlord may have violated?
 - **Claim:** Failure to Provide Essential Services

Gap Report Appendix

Overall Completeness: 100%

[=====] 100%

Breach of Implied Warranty of Habitability

- **Unsupported Element** (Priority 95): Element 'Notice to Landlord' is not yet supported by any facts
 - Element: Notice to Landlord
 - See Action Item #1
- **Unsupported Element** (Priority 95): Element 'Landlord's Responsibility' is not yet supported by any facts
 - Element: Landlord's Responsibility
 - See Action Item #2
- **Procedural Requirement** (Priority 50): What is the statute of limitations for filing a breach of implied warranty of habitability claim in your jurisdiction?
 - See Action Item #22

Breach of Implied Warranty of Habitability by Home Seller

- **Unexplored Claim** (Priority 50): Potential claim 'Breach of Implied Warranty of Habitability by Home Seller' has not been explored with fact mappings
 - See Action Item #13

Breach of Warranty

- **Unexplored Claim** (Priority 50): Potential claim 'Breach of Warranty' has not been explored with fact mappings
 - See Action Item #14

Contract & Quasi-Contract Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Contract & Quasi-Contract Claims' has not been explored with fact mappings
 - See Action Item #16

Eviction Despite Repairs and Habitability Concerns

- **Procedural Requirement** (Priority 50): What is the timeline of the eviction process and have you responded to any eviction notices according to the procedural requirements in your jurisdiction?
 - See Action Item #26

Failure to Provide Essential Services

- **Procedural Requirement** (Priority 50): Are there local housing ordinances or regulations that apply regarding the provision of essential services, such as heating, that the landlord may have violated?
 - See Action Item #28

Potential Landlord Negligence

- **Unexplored Claim** (Priority 50): Potential claim 'Potential Landlord Negligence' has not been explored with fact mappings
 - See Action Item #21

Product Liability Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Product Liability Claims' has not been explored with fact mappings
 - See Action Item #15

Property & Premises Liability Claims

- **Unexplored Claim** (Priority 50): Potential claim 'Property & Premises Liability Claims' has not been explored with fact mappings
 - See Action Item #17

Repair-and-Deduct

- **Unsupported Element** (Priority 90): Element 'Reasonable Repair Costs' is not yet supported by any facts
 - Element: Reasonable Repair Costs
 - See Action Item #3
- **Procedural Requirement** (Priority 50): Did you follow any required procedures for the repair-and-deduct remedy, such as notifying the landlord in writing of the needed repairs?
 - See Action Item #23

Retaliation for Reporting Issues

- **Unexplored Claim** (Priority 50): Potential claim 'Retaliation for Reporting Issues' has not been explored with fact mappings
 - See Action Item #19
- **Procedural Requirement** (Priority 50): Have you maintained records of your reports to housing authorities or complaints to the landlord that could demonstrate the timing of any retaliatory actions?
 - See Action Item #27

Retaliation for Withholding Rent

- **Unsupported Element** (Priority 40): Element 'Protected Activity' is not yet supported by any facts
 - Element: Protected Activity

- See Action Item #4
- **Unsupported Element** (Priority 40): Element 'Adverse Action by Landlord' is not yet supported by any facts
 - Element: Adverse Action by Landlord
 - See Action Item #5
- **Unsupported Element** (Priority 40): Element 'Causal Connection' is not yet supported by any facts
 - Element: Causal Connection
 - See Action Item #6
- **Unexplored Claim** (Priority 50): Potential claim 'Retaliation for Withholding Rent' has not been explored with fact mappings
 - See Action Item #12
- **Procedural Requirement** (Priority 50): What is the timeline of events regarding your rent withholding and any actions taken by your landlord to determine if the retaliation claim is timely?
 - See Action Item #24

Tenant Rights and Protections

- **Unexplored Claim** (Priority 50): Potential claim 'Tenant Rights and Protections' has not been explored with fact mappings
 - See Action Item #18
- **Procedural Requirement** (Priority 50): Have you documented your complaints to the landlord regarding the mold and heat issues to support your tenant protection claims?
 - See Action Item #25

Uncategorized

- **Procedural Requirement** (Priority 84): About the immigration papers (Notice to Appear) you received: did that first notice state the exact TIME, DATE, and PLACE of your court hearing, or were

those details missing or sent later? A notice missing those details can matter to your case (it can affect eligibility clocks) — bring the original papers to a lawyer. [Authority: *Pereira v. Sessions*, 138 S. Ct. 2105 (2018); *Niz-Chavez v. Garland*, 141 S. Ct. 1474 (2021) (defective Notice to Appear)]

- See Action Item #10

- **Procedural Requirement** (Priority 84): You reported problems to the city (or an inspector cited your landlord) shortly before the eviction steps started. If a landlord moves to evict soon after a tenant reports code violations, the law may presume retaliation — in Minnesota, Minn. Stat. § 504B.285/§ 504B.441; other states have an equivalent. How soon after your report did the eviction notice arrive? [Authority: Minn. Stat. § 504B.285, subd. 2; § 504B.441 (retaliation defense/penalties)]

- See Action Item #11

| Unlawful Entry

- **Unexplored Claim** (Priority 50): Potential claim 'Unlawful Entry' has not been explored with fact mappings

- See Action Item #20

| Open Questions

1. Have you officially informed your landlord about the issues you've faced in your home?
2. What specific responsibilities do you believe your landlord has regarding repairs and maintenance?
3. What kind of repairs were needed in your rental home, and how much do you estimate they would cost?
4. In the notice you received about your immigration status, were the exact time, date, and place of your court hearing included?
5. When did you report any issues with your housing to the city or seek help before your eviction notice was delivered?

6. When was your last rent payment before the eviction notice, and did you communicate about the issues affecting it?
7. Have you kept records or notes about your complaints regarding the mold and heating problems?
8. Have you officially notified your landlord in writing about the repairs needed before choosing to withhold rent?